



Appeal Decision

Hearing held on 20 May 2026

Site visit made on 20 May 2026

by L J O'Brien BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 June 2026

Appeal Ref: 6003932

30 Allandale Avenue, London, N3 3PJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Joshua Singer against the decision of the Council of the London Borough of Barnet.
 - The application Ref is 25/0574/RCU.
 - The development proposed is Use of the existing ancillary swimming pool building for commercial operations (Retrospective application).
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Decision

1. The appeal is allowed and planning permission is granted for use of the existing ancillary swimming pool building for commercial operations at 30 Allandale Avenue, London, N3 3PJ in accordance with the terms of the application, Ref 25/0574/RCU and the plans submitted with it, subject to the conditions in the attached schedule.

Main Issues

2. The main issues in this appeal are:
 - the effect of the proposal on the character and appearance of the area; and
 - The effect of the proposal on the living conditions of the occupiers of neighbouring properties with particular regard to noise and disturbance.

Reasons

3. Allandale Avenue is a fairly long road with no parking restrictions. The appeal property, 30 Allandale Avenue, is a substantial link-detached dwelling which is set back from the road behind a paved front garden area and driveway. The property benefits from an existing, lawfully constructed pool building which is connected to the house by glass doors. The pool building projects into the rear garden and runs along the boundary with the neighbouring property at No. 32 Allandale Avenue.
4. The proposal is for the use of the swimming pool to provide commercial swimming lessons to members of the public. Those attending lessons access the appeal property, and subsequently the pool building, via a side gate leading onto a narrow passage along the side of the building. Access to the pool building itself is then via a short walk across the rear garden area and through an external glazed door. Access through the gate is controlled by an electronic keypad which is limited to provide access only during the allotted window within which the swimming lessons

are provided. Swimmers then enter the pool building directly where changing and toilet facilities are provided. Lessons are pre-booked in 6 week blocks and cater for children with an age range of 3 – 17 years old, though most are said to be between the ages of 3 and 10 with an average age of around 6.

5. The lessons are of a small-scale and the number of students is limited by the modest size of the swimming pool and could be controlled by a suitably worded planning condition, a matter to which I will turn later. Similarly, the hours of operation are limited and could also be secured through a planning condition. I also acknowledge that not all classes offered are full and at times during the operational hours it is possible that no classes may take place at all.
6. There is no dispute between the parties that the pool can be lawfully used for purposes incidental to the residential use of the appeal property and I have no reason to disagree with this view.

Character and appearance

7. The area of Allandale Avenue in the vicinity of the appeal property comprises properties set back from the road behind front garden areas or driveways along one side of the road and has a residential character and appearance.
8. College Farm occupies much of the opposite side of the road and presents along Allandale Avenue as a series of open grassed areas housing a number of animals such as donkeys and chickens with further buildings set further back from the road behind. A saddlery and animal supplies shop operates from the College Farm site with access taken from Fitzalan Road which runs parallel to Allandale Avenue on the opposite side of the farm site.
9. The swimming pool at 30 Allandale Avenue is located within the rear garden area of the property and benefits from a high degree of visual containment. The structure itself is lawful. For a proportion of the time, whilst swimming lessons are occurring, the use of the pool as a commercial operation undoubtedly leads to an increase in the number of visitors to the site and the intensity of its use above those which would be akin to the average residential use of the property.
10. However, the commercial use of the swimming pool is limited to a reasonably small number of attendees at any one time within an enclosed building and is largely undiscernible from the surrounding area. Though, at times, the activity within the appeal property may be identifiable from neighbouring gardens and properties, this would be for limited periods of time and is mitigated by the scale of the enterprise and its enclosed nature.
11. Allandale Avenue, in my assessment, in character and appearance terms, is capable of accommodating the additional vehicles associated with the operation of the business without causing the area immediately outside of the appeal property to appear unduly commercial or excessively busy. In my view, it would be difficult to draw any distinction between other vehicles in the area and those attending as a result of the commercial activity at the appeal property. Due to the limited scale of the operation the amount of additional traffic generated would be minimal and so, in terms of background traffic noise, the quietude of the area would remain largely unaltered.

12. Those attending lessons access the pool building via a side gate to which they have the code and are able to enter the pool building directly. The evidence before me indicates that visitors to the site are not expected to congregate within the area but to enter and exit the pool building and make use of the facilities inside. Even were those attending to spend a longer period of time outside of the pool building itself this would not be to such a degree so as to lead the appeal property to appear as an obviously commercial enterprise. As such, in character and appearance terms, the property would not be generally perceived as a busy, commercial site.
13. The level of the commercial activity at the appeal site is limited by the capacity of the pool building, the hours of operation and the number of attendees. With these factors considered, and given the modest scale of the pool and its location at the rear of the property, the residential character of the appeal property within its context is evident and remains the dominant characteristic of the property.
14. In my view, due to the nature and scale of the enterprise it does not have a tangible, harmful effect on the character of the site and is not such a notable departure from the residential character of the area so as to be incompatible.
15. For the reasons set out above I find that the proposal does not cause harm to the character and appearance of the area. As such, the proposal would comply with the aims of Policy CDH01 of the Barnet Local Plan, adopted March 2025 (LP) which sets out that the Council will expect development proposals to respond sensitively to the distinctive local character. The proposal would also accord with the aims of Policy D3 of the London Plan, 2021 (The London Plan) which states that, amongst other things, development should respond positively to local distinctiveness.
16. The development would also meet the expectations of The National Planning Policy Framework (The Framework) which promotes high standards of design and states that developments should be sympathetic to the character of the area.

Living conditions

17. The swimming pool building runs along the boundary with the neighbouring property at No. 32 Allandale Avenue and can be seen from that property. Glimpse views through the intervening boundary treatments are also available for the occupiers of the neighbouring property at No. 28.
18. The use of the swimming pool building for ancillary domestic purposes is lawful. Consequently, it is highly likely that the pool would continue to be used and the associated plant and equipment would be operated irrespective of whether or not the proposal before me were to be permitted. Notwithstanding this, as set out above, it is clear to me that the swimming lessons lead to a somewhat more intensive use of the pool than would be the case were it simply to be ancillary to the appeal dwelling. It is therefore for me to consider whether the additional usage of the pool for the commercial activities leads to unacceptable noise and disturbance.
19. A Noise Impact Assessment (NIA) by Impact Acoustics was submitted as part of the original application and was updated¹ following responses from the Council.

¹ Reference IMP7903-2 dated September 2025

This document was further accompanied by a letter dated 1 October 2025 and a rebuttal document dated January 2026². These documents concluded that the proposal has a low impact on neighbouring properties. A further Technical Memorandum by es acoustics dated 12 November 2025³ was commissioned by the neighbouring residents which called the findings set out within the NIA into question.

20. Though there is no dispute between the parties that the NIA which was conducted reports that the operation of the swimming lessons would have a low impact on neighbouring properties, I concur with the views put before me that there are some serious concerns regarding the methods used to reach this conclusion.
21. The internal swimming pool readings which form part of the NIA were undertaken on a day when normal swimming lessons would not occur. Lessons were arranged that day to enable the assessment to take place but were not “business as usual” and as such I consider that this element of the assessment is problematic and does not represent an accurate reflection of the situation in reality. Furthermore, issues have been raised regarding the appropriate use of British Standards and the penalty and “R” values which have been applied throughout the NIA. The justifications provided in respect of these elements of the NIA do not, to my mind, allay these concerns. On this basis, I am not satisfied, in light of the evidence before me, that the methodology used can be considered robust.
22. Though concerns have also been raised regarding the fact that the NIA was undertaken on the basis that the windows and doors would be shut during the operational times of the swimming lessons, the evidence before me indicates that this would, indeed, be the case moving forward and could be secured by a planning condition. As such, I do not have concerns in this regard. Nevertheless, given the degree of other potential flaws within the NIA, and the submitted addendums, I cannot be satisfied that this assessment represents a true, accurate or technically sound reflection of the noise impacts of the proposal. Consequently, I can afford the findings set out within these documents only limited weight in my assessment of the appeal.
23. The swimming lessons take place on relatively few days each week and for a limited number of hours. The hours of operation could be controlled by a planning condition so as to further reduce any effect on neighbouring residents by ensuring that swimming lessons do not take place at more sensitive times when those living nearby should be entitled to expect a greater degree of calm and quiet. Lessons are confined to daytime and early evening hours when activity within a residential area would be considered commonplace.
24. Attendance at the lessons is also constrained by the size of the swimming pool and the nature of the lessons taking place. Again, the number of concurrent lessons and the number of students could be controlled via a planning condition to ensure that large groups would not be able to attend the facility at any one time and to carefully control the intensity of the use. Though I accept that each child attending a swimming lesson is likely to have a parent or guardian with them, and that on occasion an additional child such as a sibling, may be present, the numbers would remain relatively low.

² Reference IMP 7903-4

³ Reference 22387/TM/0001

25. The evidence before me indicates that the swimming pool is not used for larger scale commercial activity such as parties. I accept that neighbouring residents have concerns around this and in order to avoid such situations a condition could be used as a mechanism for ensuring that no commercial parties or similar activities which would have the potential to be noisy or disruptive could take place.
26. The lessons themselves take place inside a solid structure. Though I accept that windows and doors to the building may have been opened at times during the commercial operation of the swimming pool, as mentioned above, the evidence before me indicates that, in future, the windows and doors would be shut during the hours the lessons were operating thus reducing any noise spill out. This could be secured by a planning condition.
27. The ancillary domestic use of the swimming pool facilities could be undertaken without restriction on the hours of operation or the size of any groups using the pool at any one time and the windows and doors could all be opened. As such, the lawful use of the pool has the potential to create a greater degree of noise and disturbance than the organised and controlled use of the facility for the provision of small-scale swimming lessons.
28. Additional concerns have been raised in respect of noise, not directly attributed to the lessons themselves, but as a result of vehicles arriving and leaving with engines running, doors slamming and movement of people along with noise associated with activity outside and around the appeal site and increased comings and goings. Those attending lessons also need to walk along the side of the property and across the rear garden area.
29. However, the number of people present at and around the site to attend swimming lessons are limited in number and the noises associated with their arrival and departure are intermittent as classes begin and end. The sounds of activity within garden areas is common within residential areas and, given the relatively low numbers of students attending, I do not consider that any noise associated with the swimming lessons is harmfully above that which can be readily expected in an area such as this. Indeed, given the location of the appeal property opposite the area of College Farm where people stop to feed the animals the background level of activity around the appeal site is at an increased level.
30. Additionally, the swimming pool building has toilet and changing facilities inside and those attending lessons are likely to go straight into the pool building rather than to congregate for long periods outside. Benches are provided within the swimming pool building to allow those accompanying swimmers to wait inside. Even if those attending lessons were to sit and wait outside for short periods I do not consider that the noise created would be such that it could be considered to be significantly more harmful than any other sounds associated with the ancillary domestic use of the rear garden of a residential property as a space to sit and for children to play.
31. I note the concerns raised regarding the behaviour of some visitors to the area and the litter present. However, the evidence presented to me to suggest that visitors attending swimming lessons congregate outside or contribute to any anti-social behaviour was largely anecdotal and was not, in this respect, substantiated to any firm degree. These concerns could equally be attributed to other causes.

32. I accept that anecdotally customers attending a commercial operation could be more likely to behave in an “un-neighbourly” manner. However, the evidence before me did not include any corroborated examples which demonstrated anti-social or disruptive behaviour from those attending swimming lessons.
33. Further concerns have been raised regarding the noise of the side access gate slamming shut and causing loud banging noises each time it is opened. A condition has been suggested which would require the installation of a soft close mechanism to this gate and I am satisfied that this would be sufficient to mitigate any harm in this respect.
34. In my view, I do not consider that the additional activity or vehicular movements associated with the small-scale swimming lessons would be such that they would be detrimentally above and beyond what can normally be expected in residential areas such as this. The presence of sound does not in and of itself lead directly to a harmful level of noise and disturbance. I do not consider that the proposal causes unacceptable harm in this regard.
35. I turn now to any potential disruption which could be caused in respect of additional motor vehicles attending the site. The appeal property has a Public Transport Accessibility Rating (PTAL) of 2. Despite this I observed a bus stop in reasonable walking distance of the site and secure parking for bicycles is available in the enclosed rear garden area of the appeal property.
36. Notwithstanding this, the evidence before me indicates that the majority of those attending the property for swimming lessons arrive by car. The appeal property can comfortably accommodate two vehicles on the driveway to the front of the property and whilst the indication is that these spaces are left open for use by those attending swimming lessons this is not something which could be easily controlled. Furthermore, were the appellant’s themselves to be at home their own vehicles would be displaced elsewhere along the road. Nevertheless, Allandale Avenue is a reasonably long road with on-street parking and no parking restrictions. Similarly, other nearby streets present opportunities for on-street parking.
37. In my view, the vehicles belonging to those attending swimming lessons would be parked for relatively short periods and even if there were an overlap, with the next students arriving before the previous group had left, the vehicles which would potentially be present could park legally along the length of the road without causing disruption to neighbouring residents. I note that vehicles are sometimes parked within the area in association with the pick-up and drop-off times at the nearby school, however, this is for limited periods during the day and, in my view, Allandale Avenue and the surrounding roads are able to accommodate these vehicles without causing unacceptable parking pressure within the area. I therefore, conclude that the proposal would not have an adverse effect on the living conditions of nearby residents in this respect.
38. For the reasons set out above, I consider that the proposal does not have an unduly harmful impact on the living conditions of the occupiers of neighbouring properties with particular regard to noise and disturbance. Consequently, the proposal conforms with Policies CDH01 and ECC02 of the LP. Taken together and amongst other things, these policies seek to ensure that development proposals

provide a good standard of amenity and avoid generation of unacceptable noise levels close to noise sensitive uses.

39. The proposal would also not conflict with the aims of Policy D3 or D14 of the London Plan to ensure that development proposals help prevent or mitigate the impacts of noise, avoiding significant adverse noise impacts on health and quality of life, and achieve indoor and outdoor environments that are comfortable and inviting for people to use.
40. The aims of the London Borough of Barnet Local Plan Supplementary Planning Document: Residential Design Guidance, October 2016 which seeks to ensure that schemes do not reduce the amenity value of neighbouring occupiers would also be met.
41. The scheme would also conform with the Framework which states that developments should create places with a high standard of amenity for existing and future users.

Other Matters

42. The swimming lessons provide access to an activity that promotes good health and wellbeing along with teaching water safety. In this respect the proposal would be in accordance with LP Policy CHW02 which promotes health and wellbeing and seeks to promote the creation of healthy environments which can assist in improving physical and mental health and reducing health inequalities.
43. The evidence before me indicates that at present around 50% of those attending swimming lessons at 30 Allandale Avenue have some kind of Special Educational Need or Disability (SEND). Evidence has also been put forward that a number of students attend the lessons in this setting for religious reasons.
44. The operation provides small scale swimming lessons on a 1:1 or a 1:2 basis and can tailor the lessons and the teachers to the needs of each student. For example, students are able to receive lessons from a teacher of a certain gender (for religious reasons) or from a teacher with specialist skills. The small scale of lessons within this environment provides a more intimate and calm setting for those who may struggle with the large scale and hustle and bustle of other commercial swimming pools.
45. I note that opportunities for these children to attend lessons in other settings are present. However, it remains clear to me that there is a demand for the lessons provided at the appeal site and the differences between the lessons provided at 30 Allandale Avenue and those at other facilities are evident. For example, those attending do not have to navigate large buildings or car parks or swimming pools with multiple lanes and, due to the small size of the pool, the water temperature can be carefully and accurately controlled.
46. I have had due regard to the Public Sector Equality Duty set out under the Equality Act 2010 and its aims to avoid discrimination and be proactive in seeking to promote equality. Notwithstanding the above, no effective mechanism for securing the proportion of SEND children, or those with other protected characteristics, attending the lessons at the appeal property has been proposed. As such, though the points raised above undoubtedly represent a benefit of the scheme I can afford this factor limited weight in my overall consideration of the appeal.

47. I note that concerns regarding highway safety were raised due to the presence of a number of children in the area at one time. I also accept that Allandale Avenue is used as a “cut-through” during busier times and that vehicles park within the area at the pick-up and drop-off times at the nearby school. However, these considerations are time limited and occur for only short periods each day. Moreover, there is no substantive evidence before me, and indeed no objection from the Highway Authority, to indicate that the proposal would cause undue harm in this regard. I find no reason to conclude that the proposal leads to any tangible highway safety concerns or results in a harmful level of additional parking so as to obstruct vehicular or pedestrian movements or cause any obstruction to visibility on the road.

Conditions

48. The Framework makes clear that planning conditions should be kept to a minimum, and only used where they satisfy the following tests: necessary, relevant to planning, relevant to the development to be permitted, enforceable, precise and reasonable in all other respects.
49. In the interests of precision and clarity, and as discussed at the Hearing, I have undertaken some minor editing and rationalisation of the conditions proposed by the parties. Conditions to control the timescale within which the use must commence and specifying the relevant plans are not necessary as the operation has already begun.
50. There was some discussion at the Hearing regarding the details of a number of the conditions. In particular, with the aim of creating a balance between the viable ongoing commercial operation of the swimming pool for swimming lessons and protecting the living conditions of the occupiers of neighbouring properties. Within this context, I have imposed a condition restricting the hours of operation of the commercial activity at the appeal site in the interests of ensuring that any potential disruption is limited during the more sensitive hours (such as evenings, weekends and bank holidays). In the same light I have also restricted the number of students to attend lessons at any one time to three as was agreed by the parties at the Hearing. With the same aims I have imposed conditions prohibiting the use of amplification or the use of the pool facility for any larger scale commercial activity, such as parties. Additionally, and for the same reasons, I have included a condition in respect of the noise emitted by the plant serving the swimming pool facility.
51. As agreed at the Hearing, in order to protect the living conditions of the occupiers of neighbouring properties, I have included a condition requiring the side access gate to the property to be fitted with a soft-, self-closing hinge. I have required this device to be fitted within three months of the date of this decision in order to balance the time required to implement such mechanisms with any disruption to neighbouring occupiers. I have also imposed a condition requiring the windows, doors and rooflights of the swimming pool building to be closed during the commercial hours of operation to minimise any noise overspill.
52. A further condition requiring the external doors to the swimming pool building to be fitted with self-closing devices was suggested by the parties. However, I have already included a condition which requires the external doors to be shut whilst swimming lessons are occurring. In my view, the requirement is for the doors to be

shut irrespective of how that is achieved. It is not, therefore necessary to require the doors to be self-closing, as a failure to shut them during the commercial hours of operation would represent a breach of condition in any event. As such, I consider that this condition, in this instance, would not meet the tests set out within the Framework and I have not imposed it.

53. A condition requiring the de-commissioning and removal of the defunct plant unit to the roof of the swimming pool building was suggested by the parties at the Hearing. The removal of this unit would offer visual enhancements to the neighbouring residents but imposing a condition requiring this would not meet the tests set out within the Framework as it would not be necessary to ensure that the proposal was satisfactory. As such, I have omitted this condition.
54. As agreed by the parties at the Hearing I have not imposed the suggested condition regarding the noise criteria in BS8233:2014 as this condition would not meet the tests set out within the Framework.
55. The parties also suggested a condition requiring the submission of a Daily Activity Management Plan in order to ensure that the operation remains at a scale compatible with the surrounding area. However, other conditions which I have imposed would restrict the hours of operation and the occupancy numbers within the swimming pool, and thereby the number of swimming lessons which can occur, and the scale of the commercial activity on site would be limited by this. Accordingly, I do not consider it necessary to impose an additional condition requiring a management plan.
56. The parties suggested a condition tying the commercial operation of the swimming pool facilities to the appellants. However, The Planning Practice Guidance (PPG) is clear that "Planning permission usually runs with the land and it is rarely appropriate to provide otherwise. There may be exceptional occasions where development that would not normally be permitted may be justified on planning grounds because of who would benefit from the permission." In this instance, as I have found the commercial use of the swimming pool building to be acceptable I do not consider that the circumstances within this particular appeal are such that they meet the threshold for applying a condition such as this. Accordingly, I have not imposed this condition.

Conclusion

57. For the reasons set out above I conclude that the appeal should be allowed subject to conditions.

L J O'Brien

INSPECTOR

Schedule of conditions

- 1) The use hereby permitted shall only take place between the following hours:

14:00 hours – 19:00 hours Mondays – Wednesdays

09:30 – 16:30 Fridays

The use hereby permitted shall not take place at any time on Thursdays, Saturdays, Sundays or Bank Holidays.

- 2) The commercial use of the swimming pool for swimming lessons hereby permitted shall be carried out with no more than three children in the pool at any one time. The number of instructors present in the pool shall be limited to a maximum of two at any one time.
- 3) Within 3 months of the date of this decision a soft- and self-closing device must be fitted to the side access gate to 30 Allandale Avenue. The soft- and self-closing device shall be maintained in an operational condition and retained thereafter.
- 4) At no time during the commercial hours of operation set out within condition 1 above shall any external doors, windows or rooflights to the swimming pool facility be fixed in an open position.
- 5) The level of noise emitted from the air conditioning plant serving the pool facility shall be at least 5dB(A) below the background level, as measured from any point 1 metre outside the window of any room of a neighbouring residential property.
- If the noise emitted has a distinguishable, discrete continuous note (whine, hiss, screech, hum) and/or distinct impulse (bangs, clicks, clatters, thumps), then it shall be at least 10dB(A) below the background level, as measured from any point 1 metre outside the window of any room of a neighbouring residential property.
- 6) The swimming pool building shall not be used for swimming parties, social gatherings or other organised events associated with the commercial swimming lesson use hereby permitted.
- 7) No amplified music, loudspeakers, public address systems or other amplified sound equipment shall be used in connection with the swimming lessons or any associated commercial activity at the site.

APPEARANCES

FOR THE APPELLANT:

Mr Joe Henry	Henry Planning Limited
Mr Joshua Singer	Appellant
Mrs Lucy Roiter	Appellant's wife

FOR THE LOCAL PLANNING AUTHORITY:

Miss Olivia Becci	Senior Planning Officer
Mr Ian Inman	Senior Scientific Services Officer
Mrs Eva Quille	Deputy Planning Manager
Mr Mansoor Cohen	Principal Planning Officer

FOR THE INTERESTED PARTIES:

Mr Christopher Pittock	JMS Planning & Development Ltd
Mr Berman	Neighbouring resident
Mrs Berman	Neighbouring resident
Mr Hakimi	Neighbouring resident